

PLUGANDPLAY

Amazon
Ecosystem Corporate Membership
Agreement
Supply Chain
Plug and Play Silicon Valley

This Corporate Membership Agreement (“Agreement”) is made effective as of April 01, 2024 (“Effective Date”), by and between Amazon.com Services LLC, whose principal office is located at 410 Terry Avenue North, Seattle, WA, 98109-5210, United States (hereinafter “Amazon”) and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”) whose principal office is located at 440 North Wolfe Road, Sunnyvale, CA, 94085, United States (hereinafter “Plug and Play”). Plug and Play and Amazon hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement

1.1. Amazon is seeking a deeper engagement with Plug and Play to drive business growth opportunities for Amazon through strategic relationships, pilots, acquisition, or investment in startups and establish Amazon as an innovation leader in the Supply Chain space. To ensure Amazon’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Ecosystem Membership—Plug and Play Supply Chain

1.2.1. The execution of the Agreement will grant Amazon a status of “Ecosystem Member” of Supply Chain at Plug and Play Silicon Valley.

1.2.2. As an Ecosystem Member, Amazon will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Ecosystem Benefits—Plug and Play Supply Chain

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to Amazon in the Supply Chain industry (the "Program"). As an Ecosystem Member, Amazon will receive the following:

2.1. Sourcing and Startup Introductions

2.1.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between Amazon and startups based on Amazon's business challenges. These connections are made through "Dealflow Sessions"—up to one during the Trial Period, up to five during Segment 1, and up to six during Segment 2 and Segment 3. Dealflow Sessions are structured as follows:

- a)** Amazon shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to Amazon and allow Amazon to select up to eight startups it wishes to meet. Of the

eight startups chosen by Amazon, Plug and Play will arrange for Amazon to meet (virtually or in-person) up to four startups during the Dealflow Session.

- b)** At the Dealflow Session, each of the selected startups will present to Amazon, followed by open discussions between the selected startups and Amazon.
- c)** If Amazon or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate Amazon's schedule.

2.1.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between Amazon and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).

2.1.3. Playbook: During the Term, Amazon may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. Amazon's representatives that wish to use Playbook must first create a profile on the Playbook platform.

2.2. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. Amazon may send representatives to attend EXPO.

2.3. Events & Workshops

Amazon's marketing and business development representatives are invited to participate and promote Amazon's brand and products at all Supply Chain events and workshops. Plug and Play will provide:

2.3.1. Community Events: During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Program, members of other programs, and startups. Amazon may attend any community event during the Term.

2.3.2. Internal Events: Plug and Play will invite Amazon to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may

invite Amazon to internal events relating to other industries in Plug and Play's sole discretion.

2.3.3. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. Amazon may attend any FPS either virtually or in-person.

2.4. Community, Branding, and Marketing

2.4.1. Public Relations: Amazon and Plug and Play will work together to submit a press release announcing the collaboration in a mutually agreed upon substance and form. Additionally, this collaboration will be promoted at Plug and Play's events and in event materials, including, but not limited to, event room screens, event programs, and pop-up banners. Any such press release, promotion, and materials shall be subject to Amazon's prior review and written approval, which approval can be revoked by Amazon at anytime.

2.4.2. Branding in Silicon Valley: Subject to Amazon's prior review and written approval, in each case, which approval can be revoked by Amazon at anytime, a Amazon placard may be positioned on Plug and Play's strategic member wall at its Silicon Valley headquarters and Plug and Play may note Amazon as a member on its website.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

3.1. Plug and Play shall not use Amazon's logo and trademarks (the "Marks") in any way unless Plug and Play obtains prior written permission from Amazon to use the Marks. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication. Amazon shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play. Plug and Play will follow the trademark guidelines and policies of Amazon in connection with the use of the Marks.

3.2. Amazon may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by Amazon. Amazon will follow the trademark guidelines and policies of Plug and Play in connection with the use of the Plug and Play Marks.

4. Intellectual Property

- 4.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by Amazon or any company introduced to Amazon through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2.** If Plug and Play and Amazon desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

5. Confidentiality

The parties agree that all information exchanged during the performance of obligations in accordance with this Agreement will be deemed "Confidential Information" under the Mutual Non-Disclosure Agreement, dated as of March 19, 2024, between Plug and Play and Amazon.com, Inc. (the "MNDA").

6. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the "Indemnified Parties"), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys' fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as "Claims") which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to any of the Services performed or accepted by each Party under this Agreement.

7. Limitation of Liability

The liability for either Party under this Agreement shall be limited to the total amount of fees paid by Amazon to Plug and Play, except in the case of (a) willful or intentional misconduct, or (b) breaches of the obligation of confidentiality under the MNDA and in no

event shall either Party be liable to the other Party for any special, incidental, punitive, speculative, lost profits or consequential damages.

8. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party, and no party shall have authority to contract for or bind any other party in any manner whatsoever. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive and unless otherwise specifically agreed to in writing by the Parties Amazon will not be precluded from working with other accelerator or incubator services, developing its own such programs or entering into other agreements with any company introduced to Amazon through the services provided by Plug and Play in connection with this Agreement.

10. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC
Attention:
Address: 440 North Wolfe Road,
Sunnyvale, CA, 94085, United States
Email:

Amazon.com Services LLC
Attention: General Counsel
Address: P.O. Box 81226 Seattle, WA 98108-
1226
Email: contracts-legal@amazon.com

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written

agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. Amazon shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of New York without application of its conflict of law or choice of law rules.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party.

16. Representations and Warranties

The Parties executing this Agreement on behalf of Plug and Play and Amazon represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

Plug and Play acknowledges Amazon's Code of Business Conduct and Ethics posted at <https://ir.aboutamazon.com/corporate-governance/documents-charters/code-business-conduct-and-ethics?c=97664&p=irol-govConduct> (as updated from time to time, the "**Code of Conduct**") prohibits the paying of bribes to anyone for any reason, whether in dealings with governments or the private sector. Plug and Play will not violate or knowingly permit anyone to violate the Code of Conduct's prohibition on bribery or any applicable anti-corruption Laws in performing under this Agreement.

In the performance of the Services, Plug and Play will abide, and will cause its personnel to abide, by Amazon's Supplier Code of Conduct available at <http://www.amazon.com/gp/help/customer/display.html?ie=UTF8&nodeId=200885140>

(as updated from time to time, the “Supplier Code” and together with the Code of Conduct, the “**Amazon Policies**”).

17. Other

Neither Party’s failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

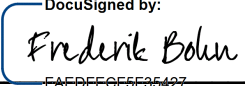
(Signature page follows)

Acknowledged, Accepted and Agreed:

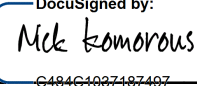
Plug & Play, LLC

Amazon.com Services LLC

Represented by:

DocuSigned by:

FAEDFECF5F35427...

Represented by:

DocuSigned by:

G484G1887187487...

Name: Frederik Bohn

Name: Nick Komorous

Title: Senior Director

Title: Authorized Signatory

Date: April 1, 2024

Date: April 1, 2024

Exhibit A: Fee Schedule

Description of Work	Trial Amount	Trial Period
Ecosystem Membership (Supply Chain) – Trial Period	\$50,000.00	Start Date: April 01, 2024 End Date: July 31, 2024

Description of Work	Segment Amount	Segment Term
Ecosystem Membership (Supply Chain) - Segment 1	\$150,000.00	Start Date: August 01, 2024 End Date: March 31, 2025
Ecosystem Membership (Supply Chain) - Segment 2	\$200,000.00	Start Date: April 01, 2025 End Date: March 31, 2026
Ecosystem Membership (Supply Chain) - Segment 3	\$200,000.00	Start Date: April 01, 2026 End Date: March 31, 2027

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until March 31, 2027 unless it is terminated early pursuant to the next paragraph (the “Term”). The period of time between April 01, 2024, and July 31, 2024, is the “Trial Period” and, every period of time outlined on the table above in the Segment Term is a “Segment.”

Amazon in its sole discretion may terminate this Agreement effective at the end of the Trial Period or any Segment by providing Plug and Play with written notice of its intent to terminate no later than 30 days prior to the end of the Trial Period or such Segment, as applicable. Early termination of this Agreement by Amazon shall not entitle Amazon to any refund of fees previously paid nor shall it release Amazon from the obligation to pay fees that were previously invoiced pursuant to the Fee Schedule above but remain unpaid as of the effective date of Amazon’s early termination.

Sections 5, 7, 14 and 16 shall survive termination of this agreement.

Plug and Play will invoice Amazon on the first date of the Trial Period and each Segment listed above, in the amount designated. Payments made under this Agreement are made in advance and are not refundable. Amazon will remit all payable amounts on any invoice within 60 days following its receipt of such invoice. Payments may be made according to Amazon’s then-current payment policies, which may include electronic payment. Payment of an invoice without asserting a dispute is not a waiver of any claim or right. Failure of Amazon to pay any amount when due may result in a late penalty commencing on the due date of such payment until the date paid at a rate of 1.5% per month (18% per annum), or the maximum amount allowed by law, whichever is less.